

The Societies Registration (Maharashtra) Rules, 1971

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State of Maharashtra - Act

The Societies Registration (Maharashtra) Rules, 1971

MAHARASHTRA

India

The Societies Registration (Maharashtra) Rules, 1971

Rule THE-SOCIETIES-REGISTRATION-MAHARASHTRA-RULES-1971 of 1971

Published on 11 January 1972

Commenced on 11 January 1972

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The Societies Registration (Maharashtra) Rules, 1971

Published vide Notification No. G.N., L. & J.D., No. 957/P, dated 11th January, 1972 (M.G., Part 4A, p. 87)

In exercise of the powers conferred by sub-section (1) of Section 22 of the Societies Registration Act, 1860 (XXI of 1860), in its application to the State of Maharashtra and of all other powers enabling it in that behalf, the Government of Maharashtra hereby makes the following rules; the same having been previously published as required by the sub-section (1) of the said Section 22, namely :-

1.

Short title and extent.

(1)

These rules may be called the Societies Registration (Maharashtra) Rules, 1971.

(2)

They extend to the whole of the State of Maharashtra.

2.

Definitions .

- In these rules, unless the context requires otherwise-

(a)

"Act" means the Societies Registration Act, 1860;

(b)

"Assistant Registrar" means an Assistant Registrar of Societies appointed under Section IB ;

(c)

"Registrar" means the Registrar of Societies appointed under Section IB;

(d)

"Schedule" means a Schedule appended to these rules;

(e)

"Section" means a section of the Act.

3.

[Regions, Sub-Regions and their limits and Head-Quarters.

[Amended by SCA. 1191/573/(156) XV dated 21.11.1992 (M.G.G. Part IV-A 1993 p. 107).]

(1)

The Regions and Sub-Regions (if any) under such Regions for the purposes of the Act, and the limits of such Regions and Sub-Regions and Headquarters thereof, shall be as follows :-

[Sr. No.

Areas

Limits of the Areas

Headquarters of the Areas

Sub-areas

Limits of the areas

Headquarters of the Sub-areas

1

2

3

4

5

6

7

1.

Greater Bombay

Greater Bombay defined in section 3(21) of Bombay General
Clauses Act, 1904.

Bombay

Nil

Nil

Nil

2.

Pune

Pune District

Pune

Nil

Nil

Nil

3.

Solapur

Solapur District

Solapur

Nil

Nil

Nil

4.

Kolhapur

Kolhapur District

Kolhapur

Nil

Nil

Nil

5.

Sangli

Sangli District

Sangli

Nil

Nil

Nil

6.

Satara

Satara District

Satara

Nil

Nil

Nil

7.

Ratnagiri

Districts of Ratnagiri and Sindhudurg

Ratnagiri

Sindhudurg District

Sindhudurg District

Kudal

8.

Thane

Districts of Thane and Raigad

Thane

Raigad

Raigad District

Alibag

9.

Nashik

Nashik Districts

Nashik

Nil

Nil

Nil

10.

Ahmednagar

Ahmednagar Districts

Ahmednagar

Nil

Nil

Nil

11.

Jalgaon

Jalgaon Districts

Jalgaon

Nil

Nil

Nil

12.

Dhule

Dhule Districts

Dhule

Nil

Nil

Nil

13.

Aurangabad

Districts of Aurangabad and Jalna

Aurangabad

Jalna

Jalna Dist.

Jalna

14.

Parbhani

Districts of Parbhani and Nanded

Parbhani

Nanded

Nanded District

Nanded

15.

Latur

Districts of Latur, Osmanabad and Beed

Latur

1. Osmanabad2. Beed

1. Osmanabad Dist.2. Beed Disitric

1. Osmanabad2. Beed

16.

Nagpur

Districts of Nagpur & Bhandara

Nagpur

Bhandara

Bhandara Dist.

Bhandara

17.

Amravati

Districts of Amravati & Wardha

Amravati

Wardha

Wardha District

Wardha

18.

Chandrapur

Districts of Chandrapur, Yavatmal Gadchiroli

Chandrapur

(1) Yavatmal(2) Gadchiroli

(1) Yavatmal(2) Gadchiroli

(1) Yavatmal(2) Gadchiroli

19.

Akola

Districts of Akola and Buldhana

Akola

Buldhana

Buldhana

Buldhana]

(2)

There shall be a Public Trusts Registration Office at the Headquarters of every Region and Sub-Region mentioned in (1) of this rule.

Note : - It shall come into force on the 15th August 1983].

4.

Memorandum of association to be filed under Section 2.

(1)

The memorandum of a association of society may contain the following declaration. that is to say -

"We, the following persons, being desirous of forming ourselves into a society under the Societies Registration Act, 1860, have subscribed our names to this memorandum".

(2)

Such declaration shall be signed by any seven or more persons associated with the society. It shall also be dated.

5.

Mode of payment of fees under Section 3 .

- The fee [* * *]

[Deleted by G. N. of 19.10.1973.]

to be paid to the Registrar under Section 3 for the registration of a society shall accompany the memorandum of association and it shall be paid in cash.

6.

Certificate of registration under Section 3 .

- Where a society is registered under the Act, a certificate in the following form shall be issued in token of such registration. Such certificate shall be signed by the Registrar or Assistant Registrar [incharge of the area or sub area]

[Substituted by G.N. dated 12-8-1983 w.e.f. 15-8-1983. M.G.G.. Part IVB. page 558.]

where the society is desired to be registered and shall bear his official seal, if any.

"Certificate of Registration"

[(See Rule 6)]

[Inserted by G.N. of 9-10-1973.]

(The Societies Registration Act, 1860)

(Act XXI of 1860)

Registration No.

It is certified that has this day been duly registered under the Societies Registration Act, 1860 (Act XXI of 1860).....Given under my hand this.....day of

.....19.....Seal.....[Registrar/Assistant Registrar of

Societies.....Area or sub-area]

[Inserted by G.N. of 9-10-1973.]

7.

[Annual list of managing body under Section 4.

[Substituted by G.N. of 12.8.1983 (w.e.f. 15.8.1983).]

- The Secretary of the Society or such other person as may be authorised by the society in i his behalf shall forward the annual list of the persons referred to in Section 4 to the Assistant Registrar in the form of a statement in Schedule I.]

8.

[Information or returns from governing body of Society under Section 4A.

[Inserted by G.N. of 9-10-1973.]

- The Secretary or such other person as may be authorised by the Society in this behalf, shall furnish the information or returns relating to persons employed by the society shall be furnished to the Assistant Registrar, by registered post or file it by them in person in the office of the Assistant Registrar, in the form of a statement in Schedule II.]

9.

Maintenance of account under Section 12-D.

(1)

Every governing body entrusted with the management of the affairs of a society not being a public trust within the meaning of the Bombay Public Trusts Act, 1950. shall keep regular accounts of all receipts and payments and movable and immovable property and of all encumbrances created on the property of the society and of all alienations made and loans taken or advanced on behalf of the society. The accounts shall contain all such particulars as in the opinion of the Registrar shall facilitate preparation of the balance-sheet and income and expenditure account in the form in Schedules III and IV.

(2)

The governing body of a society shall get the accounts audited annually in the manner prescribed in Rule 11.

(i)

in the case of a society having a gross annual income of more than Rs. 5,000 by a Chartered Accountant ;

(ii)

in the case of a society having gross annual income of Rs. 5,000 or less, by a Chartered Accountant or a person authorised by the State Government under sub-section (4) of Section 12-D.

10.

Audit.

- For the purpose of audit under sub-section (4) of Section 12-D the Registrar or the Assistant Registrar may either on his own motion or at the request of the auditor :-

(a)

require the production before the auditor, of any. book, deed, account voucher or other document including certified copies of the memorandum of association and rules and regulations of the society or record necessary for the proper conduct of the audit:

(b)

require the governing body or any person having the custody or control of, or accountable for any such book, deed, account, voucher or other document or record, to appear in person before the auditor:

(e)

require the governing body or any such person to give the auditor such information as may be necessary for the aforesaid purpose ;

(d)

require the governing body or any person having the custody or control of, or accountable for, any movable property belonging to the society to produce such property for inspection of the auditor or to give the auditor such information as may be necessary regarding the same.

11.

Manner of audit.

(1)

The report of an auditor relating to accounts audited under sub-section (4) of Section 12-D, shall, in addition to the requirements of sub-section (2) of Section 12-E, contain the following particulars, namely :-

(a)

whether the accounts are maintained regularly and in accordance with the provisions of the Act and these rule ;

(b)

whether receipts and disbursements are properly and correctly shown in accounts ;

(c)

whether the cash balance and vouchers in the custody of the secretary, treasurer or accountant or any other person of the society on the date of audit were in agreement with the accounts ;

(d)

whether all books, deeds, accounts, vouchers or other documents or records required by the auditor were produced before him ;

(e)

whether an inventory, certified by the secretary of the movables of the society has been maintained ;

(f)

whether the secretary, treasurer or accountant or any other person required by the auditor to appear before him, did so and furnished the necessary information required by the auditor ;

(g)

whether any property or funds of the society were applied for any object or purpose other than the object or purpose of the society ;

(h)

the amounts outstanding for more than one year and the amounts written off, if any:

(i)

whether all expenditure incurred on behalf of the society has been sanctioned from time to time by governing body or any other person or persons authorised to do so under the rules and regulations of the society:

(j)

whether tenders were invited for repairs or construction involving expenditure exceeding Rs. 5,000 :

(k)

whether minutes of the meeting of the general body, governing body and other bodies or committees, if any, are maintained regularly and properly;

(l)

whether list of members is maintained and is kept up-to-date :

(m)

the name and address of the present secretary to the society, with whom the communication is to be made;

(n)

if the rules of the society prescribe any mode of investment of the money of the society: and whether the investment is as per such rules :

(o)

any special matter, the auditor may think fit or necessary to bring to the notice of the Assistant Registrar.

(2)

The balance sheet and income and expenditure account required under sub-section (1) of Section 12-E to be prepared by the auditor or any person authorised in this behalf and forwarded by him to the Assistant Registrar shall be in the form of Schedules III and IV, respectively.

12.

Time-limit for audit and submission of the audit report, etc., under Section 12-E.

(1)

The governing body shall get the accounts audited within six months of the date of balancing the accounts under subsection (3) of Section 12-D, and the auditor shall forward a copy of the balance-sheet and the income and the expenditure account along with his audit report to the Assistant Registrar within a fortnight of the completion of the audit or such further time as the Assistant Registrar may grant in this behalf.

(2)

In every office of the Assistant Registrar, there shall be maintained a register of such audit reports received under sub-rule (1) in the form of Schedule V.

13.

Inspection of documents .

(1)

Subject to the conditions [x x]

[Deleted by G.N. of 9-10-1973.]

hereinafter specified, the Assistant Registrar shall, on application by any person having interest or permitted in this behalf by the Assistant Registrar. allow inspection of any statement, notice, intimation, account, audit report or any other document filed under the Act not being those documents filed under Section 4-A.

(2)

The application shall specify the particulars of the documents, and contain such information as may be necessary for identifying the documents required for inspection.

(3)

[x x x]

[Deleted by G.N. of 9-10-1973.]

(4)

Such inspection shall be allowed during office hours only, subject to such supervision as the Assistant Registrar may in each case direct.

14.

Grant of copies of documents.

(1)

On payment of the fees herein specified, the Assistant Registrar or an officer authorised by him in this behalf shall, on application by any person having interest or any other person permitted by the Assistant Registrar or officer authorised by him in this behalf furnish him with certified copies under his hand of the following documents, not being documents filed under Section 4-A of the Act :-

(a)

any statement, notice, intimation, account, audit report or any other document filed under the Act :

(b)

any certificate issued by the Assistant Registrar.

(2)

The fees for the supply of certified copies shall be

(a)

25 paise for every 100 words or fraction thereof as copying fee

(b)

7 paise for every 100 words or fraction thereof as comparing fee ;

(c)

3 paise for every sheet of foolscap paper used in preparing a copy or copies asked for ;

(d)

in case a document In the tabular form twice the rate of fee fixed for copying and comparing :

Provided that, where copy of any document is required within a period of twenty-four hours, but not exceeding forty-eight hours, there shall be paid an additional fee equal to 50 per cent of the fee prescribed for copying and comparing.

(3)

Where different persons apply for single copy of the same documents, the Assistant Registrar shall supply each of them an original and not a carbon copy at full rates. But if one person applies for more than one copy, he shall on request, be given carbon copies (in addition to the original copy at the full rate upto a maximum of five and shall be charged one fourth of the full copying and comparing fees with a minimum of twenty-five paise and thirteen paise respectively, per copy. Paper charges will be the same for both the original and carbon copies.

15.

Maintenance of list of members .

- Every governing body of a society registered under the Act shall maintain a list of members within the meaning of Section 15 in the form of Schedule VI.

I

(See Rule 7)

Statement of annual list of persons referred to in Section 4 of Societies Registration Act, 1860.

Name and address of the Society

Registration No. under the Societies Registration Act, 1860

Date of election and period for which elected

Period for which the list is filed _____

Serial No.

Name

Address

Occupation

Age

*[Designation]

Remark

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Note : - A copy of resolution of the general body electing the members shall accompany the statement.

Date :

Signature.

[Name and designation of the Signatory]

[Substituted by G.N. of 9-10-1973.]

II

(See Rule 8)

Statement relating to persons employed by the Society, the conditions of employment etc., during the year ending 31st December, 19

Name and addresses of the Society :

Registration No. under the Societies Registration Act, 1860.

Serial No.

Name and designation of the employee

Present pay scale

Whether temporary or permanent and whether full time or part time

Present pay per month

(1)

(2)

(3)

(4)

(5)

Dearness allowance per month

Special pay, if any

Other allowances, if any (House rent, medical, conveyance etc.)

Provident fund benefits, if any

Other benefits and amenities provided by the Society, if any

(6)

(7)

(8)

(9)

(10)

Signature

Name and Address of the Signatory.

III

[See Rules 9(1) and 11 (2)]

Name and address of the Society :

Registration No. under the Societies Registration Act, 1860

Balance sheet as at

Corpus

Funds and Liabilities

Immovable properties

Property & Assets

Current year

Previous year

Current year

Previous year

Balance as per last balance sheet.

Rs. Ps.

Rs. Ps.

(Suitably classified giving, mode of valuation).

Rs. Ps.

Rs. Ps.

Adjustment during the year (with details).

Balance as per last balance sheet. Additions or deductions

(including those of depreciations) if any, during the year.

Other earmarked funds-

Depreciation Fund Sinking Fund Reserve Fund

Investments (Suitably classified giving mode of valuation).*

Any other Fund or Funds (with details)

Balance as per last Balance Sheet.

Loan (secured or unsecured).

Additions or deductions, if any, during the year.

From members

Furniture and Fixtures -

From others

Balance as per last Balance Sheet.

Liabilities

Additions or deductions (including those of depreciations) if any, during the year.

For expenses

For advances

Loans (secured and unsecured).

For rent and other deposits.

Good, Doubtful Loans, Scholarships.

For sundry credit balances.

Other Loans Advances-

To members To employees To contractors To others

Income outstanding-

Rent Interests subscriptions Fees Other income

Cash and

Bank Balances-

(a) In Current Account for fixed deposit account with (give names of and state in whose name the account stands).

(b) With the members (give names).

(c) With others (give names)

Total

Total

The above balance sheet to the best of my/our belief contains a true account of the funds and liabilities and of the property and assets of the society.

As per our report of even date.

Dated

Signature

Chartered Accountants.

Auditors.

Signature

Full name and address of the Chartered Accountants/Auditors.

Full name and address of the signatory.

*1. Market value on the date of the balance sheet should also be given by way of a note.

2. Particulars of investments in concerns in which the members are interested shall be given separately by way of a note.

3. In case the accounts are maintained on cash basis, state the income outstanding here below:-

IV

[See Rule 9 (1)]

Name and address of the Society :

Registered No. of the Society under the Societies Registration Act, 1860 :

Income and Expenditure Account for the year ending 19

Expenditure

Current year

Previous year

Income

Current year

Previous year

To expenses in respect of

By rent accrued realised

Properties -

Rates, Taxes, cessesRepairs and

maintenanceSalariesInsuranceDepreciation (by way of provisions or adjustments)

By interestaccrued*realised

(a) On securities(b) On loans(c) On Account

To Establishment Expenses

By dividends

By donations in cash or kind.

By grants :-

To remuneration to office bearers

To Legal ExpensesTo Audit Fees

By feesBy subscriptionsBy income from other sources

(give details as far as possible).

To amount written off-

(a) Bad debts
(b) Loan Scholarships
(c) Irrecoverable rents
(d) Subscriptions and fees
(e) Other items
To Miscellaneous Expenses
To depreciation
By transfers from reserves
To amounts transferred to reserve or specific funds
By deficit carried over to balance sheet.
To expenditure on objects of the Society.
To surplus carried over to balance sheet.

Total

Rs.

Total

Rs.

* Strike off whichever is not applicable.

Date :

As per our report of even date.

Place:

Signature-

Signature:

Chartered Accountants/Auditors.

Full Name and address of the signatory.

Full name and address of the Auditors.

V

[See Rule 12 (2)]

Register of Audit Report

Registered No. and Name of the Society

Year under audit

Date of Receipt

Name of Auditor

Remarks

(1)

(2)

(3)

(4)

VI

(See Rule 15)

List of members to be maintained by the governing body of a society

Name and address of the Society:

Registration No. of the society under the Societies Registration Act, 1860:

Serial No.

Name and address of the member

Date of admission

Signature of the member

Remarks

(1)

(2)

(3)

(4)

(5)

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